

BioSked

Momentum Subscription

General Terms and Conditions (GTC)

Version 2026-07, issue of 4 September 2026

Applies to the Momentum Platform, the Momentum Mobile App and the Momentum Assistant (AI)

Published at biosked.com/legal and provided with each Order Form

1. Definitions

“Agreement” — the contract between BioSked and Customer formed by an Order Form and the documents listed in Section 2.1.

“Aggregated Data” — data derived from Customer Data and/or Usage Data that has been aggregated and de-identified in accordance with Section 12.5 so that it does not identify, and cannot reasonably be used to identify, Customer or any individual.

“AI Assistant” / “Momentum Assistant” — the conversational (text and voice) assistant feature of the Service, as further described in Annex 3.

“BioSked” — the contracting entity identified in the Order Form per the Regional Schedule (Annex 5): for Customers whose principal place of business is in the United States or Canada, BioSked, Inc., a New York corporation with offices at 770 Ayrault Rd, Fairport, NY 14450, USA; for all other Customers (including Europe, Switzerland and rest of world), Bio-Optronics Sàrl, a Swiss limited liability company with registered office at Chemin des Châlets 7, CH-1279 Chavannes-de-Bogis, Switzerland, a wholly-owned subsidiary of BioSked, Inc. Each Agreement is with a single contracting entity.

“Committed Quantity” — the number of Scheduled Users (and any other consumption metric) committed in the Order Form.

“Customer Data” — data submitted to the Service by or for Customer or its Users, including scheduling, absence, request, staffing and account data.

“Documentation” — the user documentation, knowledge base and product descriptions for the Service made available by BioSked.

“Early Access Feature” — a feature or module identified by BioSked as beta, preview, pilot or early access, including features made available free of charge for an introductory period.

“Mobile App” — the Momentum mobile application (iOS, Android, web companion), included with every subscription for all Users.

“Order Form” — BioSked's ordering document (offer/quote) executed by the parties that references these GTC, including renewal and true-up order documents.

“Public Sector Customer” — a Customer that is a contracting authority or other public entity subject to public procurement or public accounting rules.

“Scheduled User” — any individual whose schedule, availability, absences or requests are managed in the Service during a given calendar month. Administrator-only and read-only accounts are not Scheduled Users and are unlimited.

“Service” — the Momentum software-as-a-service platform, including the modules listed in the Order Form, the Mobile App, the AI Assistant (where included), hosting, support and updates.

“Subscription Term” — the Initial Term and each Renewal Term of a subscription under an Order Form; **“Subscription Year”** means each consecutive 12-month period of the Subscription Term.

“Usage Data” — technical and operational data generated by use of the Service (telemetry, logs, performance, feature-usage and security events), as described in Annex 2, Schedule C.

“User” — an individual authorised by Customer to use the Service (staff, schedulers, administrators, HR).

2. Contract Documents, Formation and Signature

2.1 The Agreement consists of, in descending order of precedence: (a) the Order Form (including its Special Terms); (b) any statement of work for Professional Services; (c) these GTC; (d) the Annexes to these GTC. For the processing of personal data, the Data Processing Annex (Annex 2) prevails over the other documents to the extent of any conflict.

2.2 Each Order Form is a binding offer by BioSked, valid for 30 days from its date unless stated otherwise. The Agreement is formed upon execution of the Order Form by both parties.

2.3 Electronic execution only. Order Forms, addenda and renewal documents are executed exclusively through DocuSign or an equivalent electronic-signature service designated by BioSked, which constitutes valid and binding signature. Scanned or wet-ink signatures are accepted only where a Public Sector Customer's procurement rules so require.

2.4 Complete billing information is a condition of execution. An Order Form is not valid for signature, and BioSked may withhold countersignature and provisioning, until the Billing Information section of the Order Form (billing entity, address, billing contact, invoice email address, tax/registration identifiers, invoicing channel and, where applicable, purchase-order and e-invoicing references) is complete.

2.5 Affiliates of Customer may purchase under these GTC by executing their own Order Form, which creates a separate agreement between that affiliate and BioSked.

2.6 Customer purchase orders are for administrative convenience only; any pre-printed or attached terms on a purchase order, vendor portal or invoice-processing system are rejected and have no effect, except for Public Sector Customers to the extent mandatory procurement terms apply by law.

3. The Service

3.1 Provision. BioSked will make the Service available for the Subscription Term in accordance with the Agreement, the Documentation and the service levels in Annex 1, and will provide the support included in Customer's support tier. Upon execution of the Order Form, BioSked reserves the deployment slot for the Launch Date stated in the Order Form, assigns a named project manager and provides Customer with the deployment preparation pack. The Subscription Term runs from the Launch Date stated in the Order Form (Section 6.1(c)).

3.2 Included with every subscription: hosting and infrastructure operation; the Mobile App for all Users; software updates and upgrades; the support services of the included support tier (Annex 1); and the in-product usage and insight reports described in Section 12.2.

3.3 Modules. The functional scope of the subscription (edition and optional modules) is set out in the Order Form. The AI Assistant is included in the subscription where so indicated in the Order Form and is provided under the terms of Annex 3, including its activation conditions. The AI Assistant is not sold as a separate add-on.

3.4 Service evolution. BioSked continuously develops the Service and may modify it (including its features, architecture, AI models and infrastructure), provided that modifications during a paid Subscription Term do not materially reduce the core functionality of the modules purchased. Section 20 governs changes to these GTC.

3.5 Early Access Features are optional, provided “as is”, may be modified or withdrawn at any time, may be subject to additional terms presented in-product, and are excluded from the service levels of Annex 1 and from any warranty. Where an Early Access Feature is made available free of charge, Section 7.3 applies to its conversion to a paid feature.

3.6 Third-party systems and integrations. The Service interoperates with third-party systems configured by or for Customer (for example HR and payroll systems, time clocks, identity providers, e-invoicing platforms, telephony and messaging services). Third-party systems are not part of the Service: BioSked is not responsible for their availability, performance, security, data or changes, and any downtime, degradation or malfunction of the Service to the extent caused by a third-party system does not count against the service levels of Annex 1. BioSked will reasonably cooperate with Customer to diagnose such issues and to coordinate with the third-party vendor; where the issue lies in the third-party system, Customer remains responsible for engaging that vendor under its own agreement, and BioSked support may direct Customer accordingly. Rework of integrations made necessary by third-party changes is provided as Professional Services under the change-management process of Annex 4.

4. Customer Responsibilities and Acceptable Use

4.1 Contacts. Customer will at all times maintain (and keep current in writing) a named system administrator/owner and a billing contact. Notices sent to those contacts are validly given under Section 24.

4.2 Customer is responsible for its Users, for the accuracy and lawfulness of Customer Data, for obtaining all consents and completing all consultations required for its deployment of the Service (including, where applicable, information and consultation of works councils or other employee representative bodies), and for the confidentiality of credentials. Accounts are personal and must not be shared.

4.3 Acceptable use. Customer will not, and will ensure Users do not:

- (a) use the Service in violation of applicable law, or upload unlawful or infringing content;
- (b) interfere with or circumvent security, entitlement, rate-limiting or access controls, or probe or scan the Service except through an agreed security-testing process;
- (c) copy, modify, decompile or reverse engineer the Service, or access it to build or benchmark a competing product, or publish performance benchmarks without BioSked's written consent;
- (d) resell, sublicense or operate the Service for the benefit of third parties other than the affiliates and staffing pools covered by the Order Form;
- (e) submit patient data, health records or other special-category data into the AI Assistant or into free-text fields not designed for them — the Service is a workforce-scheduling tool and is not designed or licensed to receive patient records;
- (f) abuse the AI Assistant, including prompt-injection or jailbreak attempts, automated bulk querying, scraping, or use of the AI Assistant outside its scheduling scope; or
- (g) use the Service to conduct unlawful monitoring, profiling or evaluation of employees.

4.4 Safeguards. BioSked operates proportionate technical safeguards (including authentication, per-user privilege enforcement, rate limits, anomaly and abuse detection, and content filters on the AI Assistant) and may log and act on abuse events. Inadvertent submission of patient data in breach of Section 4.3(e) does not by itself make BioSked a processor of health records or (in the US) a HIPAA business associate;

BioSked will delete such data from AI-processing paths in line with the transient-processing design described in Annex 3.

4.5 User-submitted content. All content that Users type, dictate or otherwise submit into the Service — including conversational inputs to the AI Assistant — is Customer Data submitted under Customer's authority and control. As with any tool that processes user-entered content, BioSked does not pre-screen User inputs and assumes no obligation to monitor them; the safeguards of Section 4.4 are protective measures and create no such duty. Customer is solely responsible for the content its Users submit, for instructing Users on permitted content (Section 4.3 and Annex 3), and for the consequences of submissions made in breach of those instructions; BioSked's role in respect of such content remains that of a processor acting on Customer's behalf (Section 11.1). Customer will indemnify BioSked per Section 17.2 for claims arising from User-submitted content.

5. Subscription Metrics, Measurement and True-Up

5.1 Fees are based on the Committed Quantity of Scheduled Users (in pricing bands) and the modules selected. Customer may freely reallocate Scheduled Users among its sites, departments and entities covered by the Order Form.

5.2 Measurement. The Service measures the number of Scheduled Users monthly. The “Measured Quantity” for a month is the rolling average of the three most recent monthly counts, so that short peaks do not trigger adjustments. Measurement reports are available to Customer in the Service and on request.

5.3 Automatic true-up. If the Measured Quantity exceeds the Committed Quantity, the Committed Quantity is increased to the Measured Quantity with effect from the first month of the excess, and BioSked will invoice the additional Scheduled Users (i) at the per-user rate of the applicable pricing band in the Order Form or, where the new quantity enters a band not priced in the Order Form, at the then-current list rate for that band, and (ii) pro rata for the remainder of the current Subscription Year.

5.4 No amendment required. Each Order Form constitutes Customer's authorisation to invoice true-ups under this Section 5 without further signature. BioSked will state the measurement period and counts on or with each true-up invoice. True-ups are invoiced no more frequently than quarterly.

5.5 The Committed Quantity does not decrease during a Subscription Term. Customer may reduce the Committed Quantity with effect from the next renewal by written notice given with its renewal notice period (Section 9.2).

6. Fees, Invoicing and Payment

6.1 Advance invoicing. Unless the Public Sector Payment Option applies, (a) subscription fees for each Subscription Year are invoiced annually in advance — the first invoice upon execution of the Order Form and each subsequent invoice no later than 30 days before the start of the Subscription Year — annual invoicing is the only billing frequency offered; and (b) fees for Professional Services are invoiced in full upon execution of the Order Form or applicable SOW. BioSked may make provisioning of the Service and the scheduling of Professional Services conditional on receipt of the first payment. (c) The Subscription Term starts on the Launch Date stated in the Order Form — a date chosen by Customer from BioSked's published deployment windows, no later than ninety (90) days after execution. Invoices remain issued and payable per (a) and (b) regardless of the Launch Date. Except for Public Sector Customers, if payment of the first invoices has not been received fifteen (15) days before the Launch Date, BioSked may release the reserved slot and reschedule deployment to the next available window; the Launch Date and the start of the Subscription Term are not postponed by such rescheduling. Any arrangement different from this Section applies only where expressly stated in the Order Form (Public Sector Payment Option or Special Terms); requests to defer or modify invoicing made outside the Order Form (including orally) have no effect.

6.2 Payment terms. Invoices are payable within 30 days of the invoice date, in the currency stated in the Order Form, without set-off, deduction or withholding. Accepted payment methods (bank transfer, SEPA, credit card, payment portal) and the invoicing channel are stated in the Order Form. Invoices are delivered electronically to the invoice email address stated in the Order Form and/or the designated e-invoicing platform; Customer keeps that address current per Section 4.1.

6.3 Disputes. Customer must notify BioSked of a good-faith invoice dispute within 15 days of the invoice date, with reasonable detail; the undisputed portion remains payable when due. The parties will resolve disputes promptly under Section 26.1.

6.4 Late payment. Amounts not paid when due bear late-payment interest at the statutory rate of the Regional Schedule or, where none is mandated, 1% per started month, plus the statutory recovery indemnity where applicable, plus reasonable collection costs. BioSked may suspend per Section 10 and may require advance payment or other assurances for future periods after repeated late payment.

6.5 Taxes. Fees are exclusive of VAT, sales/use taxes and similar charges, which are payable by Customer at the applicable rate. Each party is responsible for its own income taxes. Withholding taxes, if mandatory, are grossed up so that BioSked receives the full invoiced amount.

6.6 No contingency. Fees are not contingent on future features or services, and except as expressly provided in the Agreement (Sections 9.4, 11.4, 17.1 and 20.3) fees are non-refundable.

6.7 Public Sector Payment Option. Where the Order Form selects the Public Sector Payment Option: (a) invoicing and payment follow the mandatory public procurement and accounting rules of Customer's jurisdiction (for example annual invoicing at the start of each service period payable after service is rendered ("service fait"), submission through the mandated e-invoicing platform such as Chorus Pro in France, and statutory payment delays); (b) Customer must provide the purchase order / commitment number and platform references required for invoice processing before the start of each service period — Customer may not rely on their absence to delay payment; (c) the prices in the Order Form include the deferred-payment adjustment of the applicable price list (currently 3% in France, 2% in the United States and Canada, 1% in Switzerland; reviewed with the price list) reflecting the later cash receipt; and (d) statutory late-payment interest and indemnities apply by law.

7. Price Adjustments

7.1 Annual indexation. On each anniversary of the start of the Subscription Term, the unit prices of the Agreement are adjusted automatically — without amendment or further signature — according to the index designated for Customer's region in the Regional Schedule (Annex 5), applying the formula $P_1 = P_0 \times (I_1 / I_0)$, where I_1 and I_0 are the most recent index values published at the adjustment date and twelve months earlier. The adjustment follows the full variation of the designated index — the index variation is itself the ceiling of each annual adjustment — and will not reduce prices below those of the preceding Subscription Year; adjustments not applied in a year are not carried forward. The applied index values are stated on the renewal invoice. The parties acknowledge that the designated index relates directly to the subject matter of the Agreement.

7.2 List-price changes. BioSked may revise its list prices and packaging at any time with at least 60 days' written notice. Revised list prices apply (a) immediately to new Order Forms, true-up quantities entering unpriced bands, and newly ordered options; and (b) to existing committed subscriptions from the start of the next Renewal Term. In-term unit prices for the Committed Quantity remain protected, subject only to Section 7.1.

7.3 Promotional and free periods (including the introductory free period of the AI Assistant for existing customers) end on the date stated for them and convert automatically: unless Customer cancels the feature in writing or in-product at least 30 days before the end of the free period, the feature continues and the

then-current list price applies from the end of the free period — invoiced with the next regular invoice and pro-rated where the free period ends within an invoiced period. BioSked gives at least 60 days' notice of the end of a free period and the applicable pricing. If Customer cancels in time, BioSked deactivates the feature at the end of the free period at no cost. Cancellation of a free feature does not entitle Customer to any discount or other price reduction and does not affect BioSked's price adjustments under this Section 7.

8. Professional Services

8.1 BioSked provides deployment, configuration, policy analysis, training, integration and other professional services as described in the Order Form or an SOW, in accordance with Annex 4 (including its change-management process).

8.2 Deployment starts in the launch week of the Launch Date chosen by Customer at signature from BioSked's published deployment windows. Customer will provide timely access to its scheduling policies, data and qualified personnel. Delays or changes attributable to Customer may result in additional charges at BioSked's then-current rates, do not reduce or suspend subscription fees, and do not postpone the Launch Date or the Subscription Term. If BioSked does not make the chosen launch week available, the Launch Date and the Subscription Term are postponed day-for-day at no charge; if such postponement attributable to BioSked exceeds sixty (60) days, Customer may terminate the affected Order Form by written notice with a full refund of amounts prepaid for services not yet delivered. If deployment is not completed within 90 days of the planned start, the parties will meet to agree the means and financial consequences of completion.

8.3 Deliverables are deemed accepted 10 business days after delivery unless Customer notifies a substantiated non-conformity in writing within that period, in which case BioSked will correct and redeliver.

9. Term, Renewal and Termination

9.1 The Agreement starts on the Effective Date of the Order Form. The Initial Term is stated in the Order Form (default: 36 months).

9.2 Renewal. The subscription renews automatically for successive 12-month Renewal Terms unless either party gives written notice of non-renewal at least ninety (90) days before the end of the then-current term. A shorter notice period applies only where mandatory public-procurement or public-accounting rules applicable to a Public Sector Customer impose one.

9.3 Termination for cause. Either party may terminate the Agreement with immediate effect by written notice if the other party (a) materially breaches the Agreement and fails to cure within 30 days of written notice (15 days for payment breaches), or where the breach is incapable of cure within that period, fails to provide and diligently execute a remediation plan reasonably acceptable to the non-breaching party within 90 days; or (b) becomes insolvent or subject to insolvency proceedings, to the extent permitted by applicable insolvency law.

9.4 Effects. Upon expiry or termination: access ends; fees due for the current Subscription Term remain due (and, in case of termination by BioSked for Customer's breach, become immediately payable); and amounts prepaid for periods after the effective date of termination are refunded pro rata only where the Agreement expressly so provides (termination by Customer for BioSked's uncured material breach, Sections 11.4, 17.1 or 20.3).

9.5 Data export. Customer may export Customer Data through the Service at any time during the Subscription Term. For 60 days after expiry or termination, BioSked will, on request, make a standard export of Customer Data available, after which Customer Data is deleted per Annex 2. Optional transition

assistance is available at then-current time-and-materials rates. On request, Customer may retain a limited archival/read-only licence under the conditions of the price list.

10. Suspension

10.1 BioSked may suspend access to all or part of the Service (including the AI Assistant per site or per user): (a) if undisputed amounts are more than 30 days overdue and remain unpaid 10 days after a suspension notice; (b) immediately, where reasonably necessary to address a security threat, an attack, or abuse contrary to Section 4.3; or (c) where required by law. BioSked will limit suspension to what is proportionate and reinstate promptly once the cause is resolved. Subscription fees continue to accrue during suspensions caused by Customer.

11. Data Protection and Security

11.1 Roles. For Customer Data containing personal data, Customer (or its affiliates) is the controller and BioSked the processor. BioSked acts as an independent controller only for account, contract, billing and security/abuse records and for the limited operational telemetry described in Annex 2, Schedule C. The Data Processing Annex (Annex 2) is incorporated into the Agreement.

11.2 Hosting and residency. BioSked hosts and processes Customer Data in the region designated in the Regional Schedule: for EU/EEA customers, in the European Union (currently Google Cloud, europe-west9 (Paris) — a region certified for French HDS hosting — with EU-region AI processing per Annex 3); for US customers, in the United States (us-east1); a Swiss cell is available per the price list. Cross-border transfers, if any, occur under the safeguards of Annex 2.

11.3 Security. BioSked implements and maintains the technical and organisational measures of Annex 2, Schedule B, relying on the certifications of its hosting providers (including ISO 27001, ISO 27017/27018 and SOC 2 Type II for Google Cloud) and on its own documented controls, and will use commercially reasonable efforts to attain and maintain ISO 27001 and/or SOC 2 Type II certification for its own operations. Current attestations and security documentation are made available on request. BioSked notifies Customer of personal-data breaches affecting Customer Data without undue delay and at the latest within 48 hours of confirmation, per Annex 2.

11.4 Subprocessors. Customer authorises the subprocessors listed in Annex 2, Schedule D. BioSked gives at least 30 days' notice of intended changes; Customer may object on reasonable data-protection grounds, in which case the parties will seek a solution and, failing one, Customer may terminate the affected part of the Service with a pro-rata refund of prepaid fees for that part.

12. Customer Data, Usage Data, Analytics and Benchmarks

12.1 Customer retains all rights in Customer Data. Customer grants BioSked a non-exclusive licence to host and process Customer Data as necessary to provide and support the Service, to comply with law, and as set out in this Section 12.

12.2 Customer insights. As part of the Service, BioSked provides Customer with usage and operational insights about Customer's own instance (dashboards, reports, periodic summaries and similar deliverables). These are Customer Confidential Information.

12.3 Usage Data. BioSked collects the operational telemetry described in Annex 2, Schedule C to operate, secure, support, improve and invoice the Service (including measurement under Section 5). Always-on telemetry is pseudonymised and excludes message content; extended diagnostics run only with per-user opt-in or at Customer's request and are retained briefly per Schedule C.

12.4 AI interaction metadata. For the AI Assistant, BioSked persists only interaction metadata (intent category, modality, language, latency, success and similar fields, with hour-truncated timestamps) — not prompts, free text, audio or names — as described in Annex 2, Schedule C, retained on a rolling 24-month basis under a single retention policy applied uniformly to all customers, after which records are deleted or subsumed into Aggregated Data (Section 12.5).

12.5 Aggregated Data and benchmarks. BioSked may create and use Aggregated Data — including for product improvement, statistical research, industry reports and cross-customer benchmarking deliverables — provided that: (a) Aggregated Data never identifies Customer, any site or any individual, and BioSked will not attempt re-identification; (b) aggregation respects minimum cohort thresholds (at least 10 individuals for operational metrics, 15 for absence-related metrics, 20 for clustering and 30 for decompositions), applied at the intersection of all filters and at each step of any time series; and (c) no output is designed or used to infer an individual's health condition, pregnancy or maternity, parental leave, disability or family status.

12.6 Benchmark participation. Customer's instance contributes by default to the cross-customer Aggregated Data sets of Section 12.5, including any benchmarking computations. Cross-customer benchmark deliverables are not a current service feature; if and when BioSked introduces them, they are governed by the then-current service description, and contributing customers receive the corresponding deliverables for as long as they contribute. Customer may opt out of benchmark contribution at any time with effect within 30 days, in which case its data is excluded from future benchmark computations and its access to any benchmark deliverables ends; an opt-out does not affect the other uses of Aggregated Data under Section 12.5.

12.7 No foundation-model training. BioSked will not use Customer Data or the content of User interactions to train general-purpose (foundation) AI models, and will contractually require the same of its AI subprocessors. Aggregated Data and interaction metadata may be used to configure, evaluate and improve the Service itself (including routing, intent taxonomies and quality benchmarks).

13. AI Assistant

13.1 The AI Assistant is provided under Annex 3, which forms part of these GTC and governs its activation conditions, human-oversight design, transparency, voice processing, data residency, prohibited uses and the parties' roles under AI regulation.

13.2 Human decision principle. The AI Assistant proposes; authorised Users decide. Every action that modifies schedules, requests or data requires explicit confirmation by an authorised User before execution. Customer will maintain this human review in its own processes and will not treat AI Assistant output as the sole basis for employment-related, clinical, payroll or safety decisions.

13.3 AI-generated content is generated probabilistically and may be inaccurate or incomplete despite the safeguards of Annex 3. Customer must verify material information in the Momentum schedule of record before relying on it. Section 16.4 applies.

14. Intellectual Property

14.1 BioSked and its licensors retain all rights in the Service, the software, the Documentation, the AI models and configurations, Usage Data, Aggregated Data and all improvements. No rights are granted except the limited rights expressly stated in the Agreement.

14.2 Customer receives a non-exclusive, non-transferable right, for the Subscription Term, to access and use the Service for its internal workforce-scheduling purposes, within the Committed Quantity and modules of the Order Form.

14.3 Customer may provide feedback and suggestions; BioSked may use them without restriction or obligation. Customer Data is not “feedback”.

15. Confidentiality

15.1 Each party will protect the other's confidential information with at least the care it applies to its own (and no less than reasonable care), use it only to perform the Agreement, and disclose it only to personnel, affiliates and advisers bound by confidentiality. Pricing and the terms of the Agreement are confidential, except for disclosures required for public-procurement transparency.

15.2 Exceptions: information that is public without breach, already lawfully known, independently developed, or received from a third party without confidentiality obligation. Compelled disclosures are permitted with prompt notice (where lawful) and limited to what is required.

15.3 These obligations survive for 5 years after termination (without limit for trade secrets).

16. Warranties and Disclaimers

16.1 Each party warrants that it has the authority to enter into the Agreement and that it will comply with applicable law in performing it.

16.2 Service warranty. BioSked warrants that the Service will perform materially in accordance with the Documentation during the Subscription Term, and that Professional Services will be performed in a professional and workmanlike manner. Customer's exclusive remedies are correction, re-performance and, where BioSked fails to cure a material non-conformity, the termination right of Section 9.3 with the corresponding pro-rata refund under Section 9.4.

16.3 BioSked warrants that it holds the rights necessary to grant the rights in Section 14.2 and that, to its knowledge at delivery, the Service does not contain viruses or malicious code.

16.4 Disclaimer. Except as expressly stated in this Section 16, the Service, Early Access Features, AI Assistant outputs and Documentation are provided without further warranties of any kind, express or implied, including merchantability, fitness for a particular purpose and non-infringement of unknown rights. BioSked does not warrant uninterrupted or error-free operation, nor the accuracy of AI-generated output. Scheduling and compliance decisions remain Customer's responsibility.

17. Indemnification

17.1 By BioSked. BioSked will defend Customer against third-party claims that the Service, as provided by BioSked and used per the Agreement, infringes a patent, copyright, trademark or trade secret, and will indemnify Customer for the resulting damages and costs finally awarded or agreed in settlement. If such a claim is made or likely, BioSked may procure the right to continue, or modify or replace the affected element without material loss of functionality; failing these, either party may terminate the affected subscription and BioSked will refund prepaid fees for the unused period. This Section states Customer's exclusive remedy for infringement. It does not apply to claims arising from Customer Data, from combination with items not provided by BioSked, from use in breach of the Agreement, or from Customer-specific instructions.

17.2 By Customer. Customer will defend and indemnify BioSked against third-party claims arising from (a) Customer Data or its collection and use by Customer; (b) use of the Service in breach of Section 4.3 or of law (including submission of patient data and unlawful employee monitoring); or (c) employment-related decisions made by Customer or its Users, including decisions informed by AI Assistant output.

17.3 The indemnified party must notify promptly, grant control of the defence to the indemnifying party (no settlement imposing obligations on the indemnified party without its consent) and provide reasonable assistance.

18. Liability

18.1 Cap. Each party's total aggregate liability arising out of or in connection with the Agreement is limited to the fees paid or payable by Customer for the Service in the 12 months preceding the first event giving rise to liability.

18.2 Exclusions. Neither party is liable for indirect or consequential damages, loss of profit, loss of revenue, loss of anticipated savings, loss of goodwill, or loss of data beyond the cost of restoration from the last available backup.

18.3 Carve-outs. Nothing in the Agreement limits liability for wilful misconduct or gross negligence, death or personal injury, fraud, Customer's payment obligations, the indemnification obligations of Section 17, or any liability that cannot be limited under applicable law.

19. Service Levels and Support

19.1 Availability commitments, maintenance windows, support tiers, response targets and the service-credit remedy are set out in Annex 1. Service credits are Customer's sole and exclusive remedy for availability shortfalls, and an availability shortfall is not by itself a material breach.

20. Changes to these GTC

20.1 Update mechanism. BioSked may update these GTC and their Annexes from time to time (including to reflect changes in law, in the Service, in security practice or in subprocessors). Updates are published with a new version number and effective date and notified to Customer's administrator and billing contacts by email and/or in-product notice at least 30 days before the effective date — at least 60 days where the update materially reduces Customer's rights or materially increases its obligations (a "Material Adverse Change").

20.2 Acceptance. The updated version applies from its effective date, and continued use of the Service after that date constitutes acceptance. No re-signature of the Agreement is required. BioSked maintains versioned records of publication, notice and acceptance evidence.

20.3 Objection to Material Adverse Changes. If Customer objects in writing to a Material Adverse Change within 30 days of notice, the previous version continues to apply to Customer until the end of the then-current Subscription Year; if the parties have not agreed a solution by then, the update applies from the next Renewal Term, and Customer may instead elect non-renewal under Section 9.2 or terminate the affected part with a pro-rata refund of prepaid fees for the period after termination.

20.4 For Public Sector Customers, this Section applies only to the extent permitted by mandatory procurement law; where a signed amendment is legally required, the parties will execute it through the process of Section 2.3.

21. Compliance and Cooperation

21.1 Each party complies with applicable anti-bribery, sanctions and export-control laws and has not offered or accepted improper inducements in connection with the Agreement.

21.2 BioSked maintains a vulnerability-disclosure contact and will inform Customer without undue delay of vulnerabilities materially affecting Customer's use, with remediation information. BioSked will reasonably cooperate with security obligations imposed on Customer by regulation applicable to it (including, for EU healthcare customers, supply-chain security requirements deriving from NIS2 implementations), through the documentation and attestations of Section 11.3 and Annex 2.

21.3 Once per 12-month period, BioSked will complete Customer's reasonable security/compliance questionnaire or provide its standard assurance pack free of charge; further audits are governed by Annex 2.

22. Insurance

22.1 BioSked maintains insurance coverage appropriate to its activities and the jurisdictions in which it operates, and will provide certificates of insurance on request.

23. Force Majeure

23.1 Neither party is liable for delay or failure caused by events beyond its reasonable control (natural disasters, war, terrorism, labour disputes other than its own workforce, governmental action, failure of utilities or of internet backbone infrastructure). The affected party must notify promptly, mitigate, and resume performance as soon as possible; obligations are suspended to the extent and for the duration of the event. If a force-majeure event persists for more than 60 days, either party may terminate the affected services on 10 days' written notice, with a pro-rata refund of prepaid fees for the period after termination. Payment obligations for services already rendered are not excused.

24. Notices

24.1 Legal notices must be in writing and are validly given by email with delivery confirmation (to legal@biosked.com for BioSked; to Customer's administrator and billing contacts for Customer), by registered mail, or by courier. Operational and product notices (including GTC updates, maintenance, subprocessor changes and price notices) may be given by email and/or in-product notification.

25. Miscellaneous

25.1 Assignment. Customer may not assign the Agreement without BioSked's prior written consent, not to be unreasonably withheld (no consent is required for assignment to an affiliate or successor in a merger or reorganisation that is not a competitor of BioSked, with notice). BioSked may assign to an affiliate or in connection with a merger, acquisition or sale of the Momentum business, with notice; a mere change of corporate name requires no consent.

25.2 BioSked may use subcontractors and remains responsible for their performance. Subprocessing of personal data is governed by Section 11.4.

25.3 Unless Customer opts out in the Order Form, BioSked may identify Customer by name and logo as a customer in customer lists and sales materials (no further publicity without consent).

25.4 The Agreement is the entire agreement on its subject and supersedes prior discussions. If a provision is held invalid, the remainder stays in force and the parties will substitute a valid provision reflecting the original intent. A waiver is effective only in writing. The parties are independent contractors. There are no third-party beneficiaries. The United Nations Convention on Contracts for the International Sale of Goods does not apply.

25.5 Sections intended to survive (including 5–7 for amounts accrued, 9.4, 9.5, 12.5–12.7 for data already aggregated, 14, 15, 16.4, 17, 18, 24–26) survive termination.

25.6 These GTC exist in English and French versions. For Agreements designating France in the Regional Schedule the French version controls; otherwise the English version controls.

25.7 Non-solicitation. Where the Regional Schedule (Annex 5) designates this Section as applicable, each party agrees that, during the Subscription Term and for twelve (12) months thereafter, it will not knowingly solicit for employment or engagement personnel of the other party who were directly involved in the performance of the Agreement. Responses to general public job advertisements and unsolicited applications are not a breach. A party hiring in breach of this Section will pay the other party, as liquidated damages and not as a penalty, an amount equal to twelve (12) months of the gross base salary of the individual concerned.

26. Governing Law and Disputes

26.1 Before initiating proceedings, the parties will escalate any dispute to senior management for good-faith resolution for at least 30 days (urgent injunctive relief excepted). Both parties will refrain from public statements disparaging the other during a dispute.

26.2 Governing law and forum are those designated in the Order Form from the options in the Regional Schedule (Annex 5). By default: for Order Forms with BioSked, Inc., the laws of the State of New York and the state and federal courts located in New York; for French customers, French law and the Tribunal des activités économiques de Paris (for Public Sector Customers, the competent administrative courts and mandatory public-procurement law); for Swiss and all other customers, Swiss substantive law and the exclusive jurisdiction of the courts of the Canton of Vaud, Switzerland.

Annex 1 — Support and Service Levels

A1.1 Support tiers

	Bronze (included)	Silver (option)	Premium (option)
Channels	In-app, email, phone	In-app, email, phone	In-app, email, phone
Hours	Business hours of Customer's region (Annex 5)	Business hours, extended to 7:00–19:00 local	24/5 + weekend on-call for Urgent
Eligible contacts	Trained administrators (2 named)	Trained administrators (5 named)	Trained administrators (10 named)
Included assistance volume	10 h/year per 100 Scheduled Users	20 h/year per 100 Scheduled Users	Unlimited fair use
Response target — Urgent	4 business hours	3 business hours	2 hours
Response target — Medium	Same business day	Same business day	4 business hours
Response target — Low	Next business day	Next business day	Next business day
Service reviews	—	Annual	Quarterly, named TAM

Severity definitions: Urgent = Service inaccessible or an issue with potential staffing-safety impact; typical resolution effort starts immediately, target restoration 24 hours. Medium = function impaired, workaround available; target resolution 3 business days. Low = cosmetic or minor; scheduled with a planned release. Support excludes training (available as Professional Services) and custom development.

A1.2 Maintenance

Scheduled maintenance is performed outside regional business hours with at least 24 hours' notice; emergency security maintenance may occur at any time. Patches and releases are deployed by BioSked with staging-first promotion and regression gates; no action by Customer is required.

A1.3 Availability commitment and service credits

A1.3.1 BioSked commits to 99.9% availability of the production Service per calendar quarter, measured by BioSked's monitoring, excluding: scheduled and emergency maintenance; causes outside BioSked's reasonable control; failures or unavailability of Customer's or third parties' equipment, software, services or connectivity — including third-party systems the Service integrates with (Section 3.6), whose downtime or malfunction never counts as unavailability of the Service and is handled per Section 3.6 (BioSked cooperates; Customer may be directed to the third-party vendor); suspensions under Section 10; and Early Access Features (including the AI Assistant while designated Early Access).

A1.3.2 If quarterly availability falls below the commitment, Customer is entitled, upon written claim within 30 days of the end of the quarter, to a service credit of 2% of the quarterly portion of the annual subscription fee (availability below 99.9% but at least 99.0%) or 5% (below 99.0%), applied to the next invoice. Service credits are capped at 5% of the quarterly portion per quarter, are not redeemable for cash, lapse if unclaimed in time or upon termination, and are Customer's sole and exclusive remedy for availability shortfalls. Customers with overdue undisputed invoices are not eligible until cured.

Annex 2 — Data Processing Annex (DPA)

This Annex applies where BioSked processes personal data in Customer Data as Customer's processor and implements Article 28 GDPR and equivalent provisions of other applicable data-protection laws (including the Swiss FADP and, where applicable, US state privacy laws; for US healthcare customers a separate Business Associate Agreement is executed where required by HIPAA).

A2.1 Processing

A2.1.1 BioSked processes personal data only on Customer's documented instructions (the Agreement, the configuration of the Service and reasonable written instructions), unless required by law, in which case BioSked informs Customer unless prohibited. Schedule A describes the processing.

A2.1.2 Persons authorised to process are bound by confidentiality. BioSked applies the technical and organisational measures of Schedule B and reviews them regularly; measures may evolve provided the security level is not reduced.

A2.1.3 Assistance. Taking into account the nature of processing, BioSked assists Customer with data-subject requests (forwarding requests received and providing tooling), with security, breach notification, DPIAs and prior consultations, with information reasonably available to BioSked.

A2.1.4 Breach notification. BioSked notifies Customer without undue delay and at the latest within 48 hours of confirming a personal-data breach affecting Customer Data, with the information required by Article 33(3) GDPR as available, followed by updates as the investigation progresses.

A2.1.5 Deletion and return. Upon termination and expiry of the export window of Section 9.5, BioSked deletes Customer Data within 30 days (backup copies within the backup cycle, at most 90 days), unless retention is required by law.

A2.1.6 Audit. BioSked demonstrates compliance through this Annex, its security documentation, third-party attestations of its providers and (when achieved) its own certifications, plus one questionnaire per year (Section 21.3). Customer may audit on-site, at its cost, once per 12 months upon 30 days' notice where attestations are insufficient or after a material breach, subject to confidentiality and minimal disruption.

A2.1.7 Transfers. Hosting and AI processing occur in-region per Section 11.2. Where a transfer to a third country occurs (e.g., a US-based subprocessor for EU customers), it is covered by an adequacy decision (including the EU–US Data Privacy Framework where certified) or by Standard Contractual Clauses with supplementary measures, and BioSked performs and documents transfer impact assessments.

A2.2 Schedule A — Description of processing

Subject matter / duration	Provision of the Momentum workforce-scheduling Service for the Subscription Term, plus the export and deletion periods.
Nature and purposes	Hosting, scheduling computation, request workflows, notifications, support, security, measurement/invoicing, and the AI Assistant features of Annex 3.
Data subjects	Customer's workforce (employees, physicians, contractors), administrators and support contacts.
Categories of data	Identification and contact data; professional data (role, qualifications, site, contract type, hours); scheduling data (shifts, on-call, availability); absence and request data (absence type labels configured by Customer — these may indirectly reveal health-adjacent information, and are protected accordingly: no inference, access controls, aggregation thresholds); authentication data; support content; device/push tokens.
Special categories	Not required by the Service. Customer configures absence labels; the Service is not intended for patient data (Section 4.3(e)).

A2.3 Schedule B — Technical and organisational measures (summary)

- Encryption in transit (TLS 1.2+) and at rest (AES-256); application-level encryption of stored access tokens (AES-256-GCM).
- Tenant isolation: per-customer instances/databases; the AI backend acts as a privilege-aware proxy using each User's own permissions — no privilege escalation by design.
- Access control: SSO (Entra ID) and MFA for administrative access; role-based privileges; least privilege; production access restricted, logged and reviewed.
- Logging and monitoring: structured logs with PII redaction and pseudonymisation; security event monitoring; abuse and rate-limit controls; documented incident-response and CVE-response process.
- Secure development: code review, staging-first releases with regression and quality gates, dependency and vulnerability management, annual review of measures.
- Resilience: managed multi-zone cloud infrastructure, backups with defined RPO/RTO targets, disaster-recovery runbooks, restore testing.
- Personnel: confidentiality undertakings, security awareness, background screening where lawful.
- Physical security: inherited from certified cloud data centres (ISO 27001, SOC 2).

A2.4 Schedule C — Usage Data, telemetry and AI interaction metadata

Category	Content	Retention
Operational telemetry (always on)	Pseudonymised event, performance, feature-usage and security/abuse events; hashed user/tenant identifiers; no message content, no audio	≤ 13 months
Support diagnostics (opt-in / on request)	Verbose event trail incl. truncated content previews for troubleshooting; pseudonymised	7 days
AI interaction metadata	Intent category, department type, language, modality (voice/text), latency, success flag, session turn, hour-truncated timestamp; no names, no free text, no audio	24 months rolling — single policy for all customers
Consent and acceptance records	Versioned acceptance of terms and voice consent (user, timestamp, version, decision)	Term + 5 years (evidence)
Billing/measurement records	Monthly Scheduled User counts per Section 5	Term + statutory retention

A2.5 Schedule D — Authorised subprocessors

Subprocessor	Purpose	Region
Google Cloud (Google Ireland Ltd / Google LLC)	Cloud hosting: GKE, Cloud SQL, Cloud Storage, logging	EU: europe-west9 (Paris, HDS-certified region); US: us-east1; CH cell: europe-west6 (when ordered)
Google Cloud — Vertex AI enterprise AI platform (Gemini models, incl. speech-to-text / text-to-speech for voice)	AI inference for assistant text/voice; no training on customer data	EU: europe-west1; US: us-east1
Apple APNs / Google FCM / Expo	Push-notification delivery (tokens, notification payloads)	Global
Microsoft (Entra ID)	Single sign-on, where enabled by Customer	Customer's tenant region
Sentry / Datadog / Google Cloud Logging	Pseudonymised operational telemetry and error monitoring	EU where available

Subprocessor	Purpose	Region
HubSpot	Support ticketing and customer contacts	EU data centre
Twilio SendGrid	Transactional email delivery	US (SCCs/DPF)

Changes per Section 11.4 (30 days' notice; objection right). The current list and regions are also published at biosked.com/legal/subprocessors and available from BioSked on request.

Annex 3 — AI Assistant Terms (Momentum Assistant)

A3.1 Scope and capabilities

The AI Assistant is a deliberately narrow, scheduling-scoped conversational interface to Customer's Momentum instance (text on all platforms; optional voice on supported devices). It answers schedule, hours, coverage, absence and request questions and assists with scheduling actions (such as submitting a time-off request, posting or bidding on the job board, proposing replacements, or preparing approvals) — always within the requesting User's own Momentum permissions. It is not a general-purpose chatbot, and it does not provide medical, legal or payroll advice.

A3.2 Activation conditions

BioSked enables the AI Assistant per customer site once the following are in place (and may keep or switch it off where they are not): (a) the Agreement (or the Momentum Assistant Activation Addendum) covering these AI Assistant Terms is in force; (b) Customer has named the administrator/owner of Section 4.1; (c) the in-product user notice and, for voice, the consent flow are live for Customer's Users; and (d) the support and incident path of Annex 1 is operational for Customer. Customer may request deactivation (entirely, per site or voice-only) at any time, effective within 5 business days; per-site activation status is logged.

A3.3 Human oversight (binding design commitment)

Every write action proposed by the AI Assistant (creating or changing assignments, submitting or approving requests, swaps, and similar mutations) requires explicit, per-action confirmation by an authorised User in the interface before execution, with the proposed change displayed before confirmation; approval flows additionally display impact information. The AI Assistant does not execute autonomous changes, does not auto-approve, and cannot exceed the privileges of the requesting User. BioSked will not remove this confirmation design for existing capabilities without treating the change as a Material Adverse Change under Section 20.

A3.4 Transparency and optionality

The assistant is identified as AI in the interface at all times. Users always retain a full non-assistant path: every scheduling task can be performed through the standard Momentum interfaces, and a text-only mode is available where voice is enabled. AI-literacy guidance for Users is provided in the Documentation; Customer is responsible for instructing its Users accordingly (including Article 4 EU AI Act literacy obligations applicable to it as an employer).

A3.5 Voice processing

Voice is optional per User and subject to an in-product consent flow that discloses the speech providers and processing regions before first use, is re-presented upon material provider changes, and can be revoked at any time (reverting to text-only). Audio is processed transiently for transcription and response and is not retained by BioSked; BioSked does not create voiceprints and does not use voice data for biometric identification, emotion recognition or profiling. Medical-vocabulary hints are applied for transcription quality only.

A3.6 Data handling and residency

Prompts and conversation content are processed in memory and are not persisted by BioSked; short-lived conversational context expires automatically. Inputs to the AI Assistant are User-submitted content under Customer's responsibility (Section 4.5). Persisted AI telemetry is limited to the interaction metadata of Annex 2, Schedule C. All AI inference for the assistant (text and voice) runs on the enterprise AI

infrastructure of the subprocessors listed in Annex 2, Schedule D — currently Google Cloud (Vertex AI) — hosted in the region applicable to Customer: for EU/EEA customers, assistant processing including AI inference is performed end-to-end in EU regions; for US customers, in US regions. BioSked may substitute AI providers per Section A3.12 and Section 11.4 while maintaining these residency commitments. No Customer Data and no interaction content are used to train foundation models (Section 12.7).

A3.7 Prohibited uses

- submitting patient data, health records or other data prohibited by Section 4.3(e);
- using assistant output as the sole basis for employment-related, disciplinary, clinical, payroll or staffing-safety decisions, or representing output as authoritative without verification in the schedule of record;
- attempting to bypass safety, scope or privilege controls (prompt injection, jailbreaking, automated mass querying, scraping);
- using the assistant to monitor, profile or evaluate individual employees, or to attempt any inference prohibited by Section A3.8.

A3.8 No sensitive inferences

BioSked does not design, configure or use the AI Assistant or its analytics to infer or deduce an individual's health condition, pregnancy or maternity, parental leave, disability or family status, and Customer will not use the Service for such inferences. Absence-type labels remain plain scheduling data under the safeguards of Annex 2.

A3.9 Regulatory roles (EU AI Act and equivalents)

For the AI Assistant in its current scope, BioSked acts as provider of an AI system subject to transparency obligations (Article 50 EU AI Act), which are implemented in-product (AI disclosure, content provenance where applicable). The AI Assistant in its current scope is not intended for, and must not be used for, the automated allocation of work, performance evaluation or monitoring of workers within the meaning of Annex III(4) of the EU AI Act: proposals become decisions only through human confirmation (Section A3.3). Should BioSked release modules designated as high-risk (e.g., AI-assisted automated planning), those modules will be released with the required conformity documentation and module-specific terms before activation. Customer, as deployer and employer, is responsible for: using the assistant per the Documentation and this Annex; informing Users that an AI system is in use; maintaining human oversight in its processes; completing any required works-council or employee-representative consultation before deployment; and its own lawful basis for workforce data.

A3.10 Output disclaimer

AI output is generated probabilistically from Customer's live Momentum data and may contain errors despite grounding and quality gates. The Momentum schedule of record remains authoritative. Section 16.4 and Section 18 apply; BioSked is not liable for decisions taken without the human verification required by this Annex.

A3.11 Early Access status and free periods

BioSked may designate the AI Assistant (or specific capabilities such as realtime voice) as an Early Access Feature until general availability is announced; Section 3.5 then applies (including exclusion from Annex 1 service levels). Where the AI Assistant is provided free for an introductory period (including under the Momentum Assistant Activation Addendum), Section 7.3 governs conversion to paid terms.

A3.12 Model and provider changes

BioSked may change AI models, providers or processing regions provided the safeguards of this Annex (human oversight, residency commitments for EU customers, no-training, transparency) are maintained at an equivalent or better level; changes of subprocessors follow Section 11.4, and material voice-provider changes re-trigger the consent flow of Section A3.5.

Annex 4 — Professional Services and Change Management

A4.1 Deployment

Standard deployment includes: kick-off and project management; scheduling-policy analysis and documentation; data import from agreed templates; instance configuration and automation set-up; quality control and test schedules; administrator and end-user training per the package purchased; and handover to support. The typical plan and included/optional services are itemised in the Order Form or SOW. Deployment typically completes within 3 months of start; both parties will make their resources available accordingly. Upon execution of the Order Form, BioSked assigns the project manager, opens the shared project space and provides the deployment preparation pack; the Customer instance is created during the launch week.

A4.2 Customer obligations

Customer provides its scheduling policy, data in the agreed import formats, and qualified, available contact persons (future administrators). If these conditions are not met, a joint steering committee will be set up; Customer-caused delays or personnel changes may result in additional charges and do not reduce or suspend subscription fees (Section 8.2).

A4.3 Change management

All scope changes (Customer- or BioSked-initiated) are documented with their reason and their impact on scope, schedule and cost; are subject to approval by both parties before implementation; and are priced separately where they exceed the purchased package. Examples: additional teams/professions, changed scheduling policy, additional integrations, resource-sharing reorganisations.

A4.4 Acceptance

Section 8.3 applies to all deliverables. Training sessions are deemed delivered when held; no-shows by Customer consume the included volume.

Annex 5 — Regional Schedule

	United States / Canada	France	Switzerland & Rest of World
Contracting entity	BioSked, Inc., 770 Ayrault Rd, Fairport, NY 14450, USA	Bio-Optronics Sàrl, Chemin des Châlets 7, CH-1279 Chavannes-de-Bogis, Switzerland (wholly-owned subsidiary of BioSked, Inc.)	Bio-Optronics Sàrl, Chemin des Châlets 7, CH-1279 Chavannes-de-Bogis, Switzerland (wholly-owned subsidiary of BioSked, Inc.)
Governing law / forum	New York law; state and federal courts in New York	French law; Tribunal des activités économiques de Paris (private); administrative courts and mandatory procurement law (public)	Swiss law; courts of the Canton of Vaud
Currency	USD	EUR	CHF / EUR
Indexation index (Section 7.1)	US CPI-U (all items, BLS)	Indice Syntec	CH: Swiss CPI (OFS); BE: Belgian health index; other: US CPI-U
Statutory late-payment regime	1% per started month (contractual)	ECB rate + 10 pts + €40 recovery indemnity (L.441-10 C. com.); public sector: statutory moratory interest	Contractual 1% per started month
Public-sector specifics	Government orders per applicable procurement statutes; jurisdiction per statute	Chorus Pro e-invoicing; PO/commitment number before each period; payment after service rendered within statutory delays; Public Sector Payment Option pricing applies	Per applicable cantonal/communal rules
Support business hours (Bronze)	8:00–17:00 US Eastern, business days	9:00–12:00 / 13:00–18:00 CET, business days	9:00–12:00 / 13:00–18:00 CET, business days
Hosting cell (Section 11.2)	us-east1 (US)	europa-west9, Paris (EU, HDS-certified region)	EU cell, or Swiss cell europa-west6 per price list
Contract language	English	French (controls)	English or French
Non-solicitation (Section 25.7)	Applies	Not applicable	Not applicable

— End of the General Terms and Conditions (Version 2026-07) —